

ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ ගැසට් පත්‍රය
අති විශේෂ

The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 2004/49 - 2017 පෙබරවාරි මස 01 වැනි බදාදා - 2017.02.01
No. 2004/49 - WEDNESDAY, FEBRUARY 01, 2017

(Published by Authority)

PART I : SECTION (I) — GENERAL
Government Notifications

PUBLIC SERVICE COMMISSION

Delegation of Powers by the Public Service Commission in terms of Article 57(1) of the Constitution

01. The Public Service Commission in terms of the provisions in Article 57(1) of the Constitution of the Democratic Socialist Republic of Sri Lanka hereby delegates to the Public Officers stated in Column II of the Schedule "A" hereto, the powers set out in Column I thereof.
02. However, where there exists an uncertainty concerning the scope of any delegation of powers made by the Public Service Commission or the discharge of any delegation of powers so made by the said Commission, the decision of the Public Service Commission shall be final and conclusive.
03. Moreover, in the event that a Public Officer referred to in Column II of the Schedule hereto, is either the complainant or a witness or a potential witness at any disciplinary inquiry in respect of an officer belonging to a category set out in the corresponding item in Column I of the Schedule hereto, the powers delegated in respect of such officer shall be deemed to have been rescinded and the Public Service Commission shall exercise the powers so delegated in respect of such officer, as if no such delegation has been made in respect of such officer.
04. The provisions relating to the subject of Health concerning the delegation of powers set out in the Schedule "A" published in *Gazette Extraordinary* No.1990/24 dated 27.10.2016 that delegated powers in terms of Article 57(1) of the Constitution of the Democratic Socialist Republic of Sri Lanka are hereby rescinded, without prejudice to any action taken or purported to be taken under the Delegation of Powers published in the aforesaid *Gazette*.



SCHEDULE 'A'

Column I <i>Categories of Officers</i>	Column II <i>Public Officers to whom the powers are delegated</i>	Column III <i>Powers delegated</i>
1. Officers of Grade I and above belonging to the following All Island Services: - Sri Lanka Medical Service - Sri Lanka Ayurvedic Medical Service	Secretary to the Ministry of the Minister in charge of the subject of Health	I. Disciplinary control in respect of offences in the Second Schedule in Chapter XLVIII of the Establishments Code II. Granting concessions on Efficiency Bar Examinations in terms of Public Service Commission Circular No. 3/2016
2. Officers below Grade I belonging to the following All Island Services - Sri Lanka Medical Service - Sri Lanka Ayurvedic Medical Service	Secretary to the Ministry of the Minister in charge of the subject of Health Secretary to the Ministry of the Minister in charge of the subject of Health / An Additional Secretary, nominated by the Secretary and approved by the Public Service Commission	I. Granting concessions on Efficiency Bar Examinations in terms of Public Service Commission Circular No. 3/2016 II. Disciplinary control in respect of offences in the Second Schedule in Chapter XLVIII of the Establishments Code
3. Senior Level Officers of Grade I and above, as defined in Public Administration Circular No. 06/2006 (Annexure II), not belonging to All Island Services, under the Ministry of the Minister in charge of the subject of Health	Secretary to the Ministry of the Minister in charge of the subject of Health	I. Disciplinary control in respect of offences in the Second Schedule in Chapter XLVIII of the Establishments Code II. Granting concessions on Efficiency Bar Examinations in terms of Public Service Commission Circular No. 3/2016
4. Senior Level Officers below Grade I, as defined in Public Administration Circular No. 06/2006 (Annexure II), not belonging to All Island Services, under the Ministry of the Minister in charge of the subject of Health	Secretary to the Ministry of the Minister in charge of the subject of Health Secretary to the Ministry of the Minister in charge of the subject of Health / An Additional Secretary, nominated by the Secretary and approved by the Public Service Commission	I. Granting concessions on Efficiency Bar Examinations in terms of Public Service Commission Circular No. 3/2016 II. Disciplinary control in respect of offences in the Second Schedule in Chapter XLVIII of the Establishments Code

SCHEDULE 'A' (Contd.)

Column I <i>Categories of Officers</i>	Column II <i>Public Officers to whom the powers are delegated</i>	Column III <i>Powers delegated</i>
5. Tertiary Level Supra Grade / Special Grade Officers as defined in Public Administration Circular No. 06/2006 (Annexure II) under the Ministry of the Minister in charge of the subject of Health	Secretary to the Ministry of the Minister in charge of the subject of Health	I. Granting concessions on Efficiency Bar Examinations in terms of Public Service Commission Circular No. 3/2016
	Secretary to the Ministry of the Minister in charge of the subject of Health / An Additional Secretary, nominated by the Secretary and approved by the Public Service Commission	I. Disciplinary control in respect of offences in the Second Schedule in Chapter XLVIII of the Establishments Code
6. Secondary Level and Tertiary Level Officers as defined in Public Administration Circular No. 06/2006, not belonging to the Combined Services, under the Ministry of the Minister in charge of the subject of Health (excluding Department of Ayurveda).	Secretary to the Ministry of the Minister in charge of the subject of Health	I. Appointment and Promotion according to approved Schemes of Recruitment /Service Minutes. II. Disciplinary control and dismissal in respect of offences in the first Schedule in Chapter XLVIII of the Establishments Code III. Granting concessions on Efficiency Bar Examinations in terms of Public Service Commission Circular No. 3/2016
	Secretary to the Ministry of the Minister in charge of the subject of Health / An Additional Secretary, nominated by the Secretary and approved by the Public Service Commission	I. All transfers including annual transfers according to scheme approved by the Public Service Commission II. Disciplinary control in respect of offences in the Second Schedule in Chapter XLVIII of the Establishments Code
7. Secondary Level and Tertiary Level Officers as defined in Public Administration Circular No. 06/2006 (Annexure II) not belonging to the Combined Services, in the Department of Ayurveda.	Commissioner General of Ayurveda	I. Appointment and Promotion according to approved Schemes of Recruitment /Service Minutes. II. All transfers (including annual transfers according to scheme approved by the Public Service Commission)

SCHEDULE 'A' (Contd.)

Column I <i>Categories of Officers</i>	Column II <i>Public Officers to whom the powers are delegated</i>	Column III <i>Powers delegated</i>
		III. Disciplinary and dismissal IV. Granting concessions on Efficiency Bar Examinations in terms of Public Service Commission Circular No. 3/2016
8. Primary Level Officers as defined in Public Administration Circular No. 06/2006 (Annexure II) not belonging to the Combined Services, under the Ministry of the Minister in charge of the subject of Health (excluding Department of Ayurveda).	Secretary to the Ministry of the Minister in charge of the subject of Health	I. Appointment and Promotion according to approved Schemes of Recruitment / Service Minutes. II. Disciplinary control and dismissal in respect of offences in the First Schedule in Chapter XLVIII of the Establishments Code III. Granting concessions on Efficiency Bar Examinations in terms of Public Service Commission Circular No. 3/2016
	Secretary to the Ministry of the Minister in charge of the subject of Health / An Additional Secretary, nominated by the Secretary and approved by the Public Service Commission	I. All transfers including annual transfers according to scheme approved by the Public Service Commission II. Disciplinary control in respect of offences in the Second Schedule in Chapter XLVIII of the Establishments Code
9. Primary Level Officers as defined in Public Administration Circular No. 06/2006, not belonging to the Combined Services, in the Department of Ayurveda.	Commissioner General of Ayurveda	I. Appointment and Promotion according to approved Schemes of Recruitment / Service Minutes. II. All transfers including annual transfers according to scheme approved by the Public Service Commission III. Disciplinary control and dismissal IV. Granting concessions on Efficiency Bar Examinations in terms of Public Service Commission Circular No. 3/2016

PUBLIC SERVICE COMMISSION

Delegation of Powers by the Public Service Commission in terms of Article 56 (1) of the Constitution

01. The Public Service Commission in terms of the provisions in Article 56 (1) of the Constitution of the Democratic Socialist Republic of Sri Lanka hereby delegates to the Health Service Committee appointed by the Public Service Commission as stated in the Schedule "B" hereto, the powers set out in Column II in respect of the category of officers stated in column I thereof.
02. However, where there exists an uncertainty concerning the scope of any delegation of powers made by the Public Service Commission or the discharge of any delegation of powers so made by the said Commission, the decision of the Public Service Commission shall be final and conclusive.
03. The provisions relating to the subject of Health concerning the delegation of powers set out in the Schedule "B" published in *Gazette Extraordinary* No.1990/24 dated 27.10.2016 that delegated powers in terms of Article 57(1) of the Constitution of the Democratic Socialist Republic of Sri Lanka are hereby rescinded, without prejudice to any action taken or purported to be taken under the Delegation of Powers published in the aforesaid *Gazette*.

SCHEDULE 'B'

<i>Column I Categories of Officers</i>	<i>Column II Powers delegated</i>
1. Officers belonging to the following All Island Services: - Sri Lanka Medical Service - Sri Lanka Ayurvedic Medical Service	I. Appointment and Promotion according to approved Schemes of Recruitment /Service Minutes. II. All transfers including annual transfers according to scheme approved by the Public Service Commission. III. Disciplinary control and dismissal in respect of offences in the First Schedule in Chapter XLVIII of the Establishments Code IV. Granting concessions for Efficiency Bar Examinations in addition to powers delegated to the secretary to the Ministry by PSC Circular No. 3/2016
2. Senior Level Officers, as defined in Public Administration Circular No. 06/2006 (Annexure II), not belonging to All Island Services, under the Ministry of the Minister in charge of the subject of Health and Department of Ayurveda	I. Appointment and Promotion according to approved Schemes of Recruitment /Service Minutes. II. All transfers including annual transfers according to scheme approved by the Public Service Commission. III. Disciplinary control and dismissal in respect of offences in the First Schedule in Chapter XLVIII of the Establishments Code IV. Granting concessions for Efficiency Bar Examinations in addition to powers delegated to the secretary to the Ministry by PSC Circular No. 3/2016

SCHEDULE 'B' (Contd.)

<i>Column I Categories of Officers</i>	<i>Column II Powers delegated</i>
3. Tertiary Level Supra Grade / Special Grade Officers as defined in Public Administration Circular No. 06/2006 (Annexure II) under the Ministry of the Minister in charge of the subject of Health and Department of Ayurveda.	I. Appointment and Promotion according to approved Schemes of Recruitment /Service Minutes. II. All transfers including annual transfers according to scheme approved by the Public Service Commission. III. Disciplinary control and dismissal in respect of offences in the First Schedule in Chapter XLVIII of the Establishments Code and Dismissal IV. Granting concessions for Efficiency Bar Examinations in addition to powers delegated to the secretary to the Ministry by PSC Circular No. 3/2016
4. Secondary Level and Tertiary Level Officers as defined in Public Administration Circular No. 06/2006 (Annexure II) not belonging to the Combined Services, under the Ministry of the Minister in charge of the subject of Health and Department of Ayurveda.	I. Appointment and Promotion according to approved Schemes of Recruitment /Service Minutes. II. Disciplinary control in respect of offences specified in the First Schedule of Offences in Chapter XLVIII of the Establishments Code and Dismissal III. Granting concessions for Efficiency Bar Examinations in addition to powers delegated to the secretary to the Ministry by PSC Circular No. 3/2016
5. Primary Level Officers as defined in Public Administration Circular No. 06/2006 (Annexure II) not belonging to the Combined Services, under the Ministry of the Minister in charge of the subject of Health and Department of Ayurveda.	I. Granting concessions for Efficiency Bar Examinations in addition to powers delegated to the secretary to the Ministry by PSC Circular No. 3/2016

The delegation of powers as herein contained shall come into force with effect from the 01st day of February, Two Thousand and Seventeen (2017).

By order of the Public Service Commission.,

H. M. GAMINI SENEVIRATNE,
Secretary,
Public Service Commission.

Office of the Public Service Commission,
No. 177, Nawala Road,
Narahenpita,
Colombo 05.
31st January, 2017.

02-675/2